GENERAL CONDITIONS OF CONTRACT (GCC)

1.0 GENERAL :

1.1 Bidders are requested to carefully study all the tender documents and understand tender conditions, specifications etc. before quoting the rates. In case of any doubt, written clarification should be obtained but this shall not be a justification for late submission of the tender or request for extension of tender opening date. Tenders should strictly be in accordance with our specification and terms and conditions.

1.2 The Bidder should ensure that all the enclosures with all the pages are received by them and uploaded on e-tendering website as per tender condition within due date and time. Any claim for non-submission of any of the document on e-tendering website due to network failure / downloading – uploading problem or otherwise will not be entertained.

1.3 Documents with respect to PQC / Technicals along with copy of "EMD instruments" shall be scanned and uploaded in e-tendering website along with filled details as per Annexures.

1.4 The documents include specification, terms and conditions, details of the Bidders & details of the relationship with IOC Directors and Price Bid etc. All the enclosed tender documents, including this document, will be a part of the contract.

1.5 Tender should be submitted only in prescribed e-tendering website of the Corporation duly signed by vendor's own DSC. Violation of this provision will automatically debar the tender from consideration.

1.6 All the tenders and subsequent communications, if any, should be submitted on e-tendering website with respective tender number within the time and date mentioned on the website.

1.7 When the person signing the tender / agreement is not the sole proprietor or authorized representative of the company, the copy of Power of Attorney or a Notarized Certified Copy thereof, authorizing such person to act and sign on behalf of the company must be attached along with supporting documents before signing the documents.

1.8 Tenderers should not make any alterations modifications in the tender documents and BOQ uploaded by IOCL. If it is found that any Bidder has modified the tender documents and or BOQ such tenders will be disqualified.

2.0 PRICE :

2.1 Bidder should read the terms and conditions carefully and quote their rates. Quantities mentioned in the tender document are tentative. The rates quoted by the Bidder shall remain firm irrespective of the quantity of cylinders tested.

The quoted rates shall be firm till the date of placement of work order on the successful bidder or as specified in NIT, whichever is later. For successful bidder finalized rates will remain firm (including escalation / de-escalation) till completion of work order irrespective of quantity allocated.

2.2 The rates quoted in the tender shall be exclusive of GST and inclusive of all other taxes and duties as in existence on the closing date of the tender. Applicable GST as on date of tender is 18%.

2.3 Rate variation in Taxes/Duties and any new promulgated taxes /duties after last date of the submission of price bid only on the final product /services (applicable to invoices raised on IOCL) within the contractual delivery date /period (including extension approved if any) shall be on IOCL's Account against submission of documentary evidence.

Further, in case of delay in delivery/services, any upward rate variation in Taxes/Duties and any new promulgated taxes /duties imposed after the contractual delivery date shall be to the Seller's /Contractor's Account.

Similarly in case of any reduction in the rate(s) of the Taxes/Duties between last date of submission of price bid relevant to the Contract and the date of execution of activities under the contract, the Contractor shall pass on the benefit of such reduction to IOCL with the view that IOCL shall pay reduced duty/Tax to Govt.

2.4 If after the date of submission of Price BID, any new Tax is introduced (applicable to invoices raised on IOCL) in lieu of one or more of the then existing taxes and the rate and impact of the new taxes is in excess in aggregate of the rate and impact of existing tax or taxes which it replaces ,IOCL shall on satisfactory proof reimburse the contractor the additional tax paid by the Contractor as the result of the imposition of the new taxes provided they are within the "contractual completion period". If on the other hand, the rate and impact of the new tax is less than the aggregate rate and impact of the tax(es) which it replaces , the CONTRACTOR shall pass on to IOCL the benefit thereof by reduction on the amount payable by the IOCL to the Contractor.

2.5 The contractor would be liable to ensure to have registered with the respective Tax authorities. Any taxes/duties/levies being charged by the Contractors would be claimed by issuing proper TAX Invoice indicating details /elements of all taxes charged and necessary requirements as prescribed under the respective tax laws and also to mention correct and valid registration number(s) on all invoices raised on IOCL.

2.6 The contractor would be liable to reimburse or make good of any loss/claim by IOCL towards tax credit rejected /disallowed by any tax authorities due to non deposit of taxes or non compliance of tax laws by the Contractor.

2.7 The contractor will be under obligation for quoting/charging correct rate of tax as prescribed under the respective Tax Laws. Further the Contractor shall avail and pass on benefits of all exemptions/concessions/benefits/waiver or any other benefits of similar nature or kind available under the Tax Laws. In no case, differential Tax Claims due to wrong classification of goods and/or services or

understanding of law or rules or regulations or any other reasons of similar nature shall be entertained by IOCL.

2.8 **GST**

GST will be applicable for this contract and the contractors are required to quote after taking into consideration all the Input Tax Credit that can be availed by them under GST for executing the subject work.The contractor would be liable to reimburse or make good of any loss/claim by IOCL towards tax credit rejected /disallowed by any tax authorities due to non deposit of taxes or non compliance of tax laws by the Contractor.

The contractor will be under obligation for quoting/charging correct rate of tax as prescribed under the respective Tax Laws. Further the Contractor shall avail and pass on benefits of all exemptions/concessions/benefits/waiver or any other benefits of similar nature or kind available under the Tax Laws. In no case, differential Tax Claims due to wrong classification of goods and/or services or understanding of law or rules or regulations or any other reasons of similar nature shall be entertained by IOCL.

2.9 It will be presumed that the contractor is eligible to issue TAX Invoice unless otherwise specified by the contractor.

2.10 To enable IOCL to avail ITC, the contractor/supplier shall furnish/submit any and all certificates, documents and declarations as are required by IOCL to avail of the ITC with respect to GST reimbursed by IOCL on materials sold to IOCL.

2.11 Invoice should be raised as per Tax Rates mentioned in the BIDs and in case at the time of raising Invoice if the invoices raised are not as per Tax rates mentioned in the bid, payment will be limited to the rate quoted as per BID subject to increase /decrease in Rates after last date of submission of Price Bid provided delivery is within the Contractual period.

2.12 Wherever provisions of Tax deduction at Source (TDS) are applicable under the CGST / SGST / UTGST/IGST Act ,2017 on supplies of goods or services or both to IOCL , tax will be deducted from the invoice raised and deposited with the authorities by IOCL. TDS certificate as per provisions of CGST / SGST / UTGST/IGST Act, 2017 shall be issued by IOCL.

2.13 The transportation rate paid to the repairer for movement of cylinders shall include loading – unloading at both ends and all other charges as mentioned above.

2.14 For Rejection of LPG Cylinders by vendor: Charges towards rejection and to and fro transportation only will be paid. - **Not Applicable**

2.15 **Escalation / De-escalation on rates : Not Applicable**

3.0 It shall be understood that every endeavour has been made to avoid errors which can materially affect the basis of tender and the successful bidder shall take upon himself and provide for risk of any error which may subsequently be discovered and shall make no subsequent claim on account thereof**.**

4.0 Bidders are expected to submit their offers without any counter conditions. Bidder's submission of documents on e-tendering website through DSC is considered total acceptance of the terms and conditions. Hence, repeatedly the acceptance need not be mentioned in the Bidder's offer. However, tender documents have to be filled in wherever required and scanned copy of filled pages shall be uploaded on the website.

5.0 **PAN NO. & PARTNERSHIP DEED :**

6.1 PAN No. of proprietor in case of proprietorship firm/PAN no in the name of firm in case of any other firm/limited company.

6.2 A copy of the partnership deed along with acknowledgement/certificate of Registration of Firm should accompany the tender if the tender is a partnership firm.

6.3 Authorization letter in the letter head of the firm, duly signed by all the partners and notarized, authorizing one of the partners to participate in the subject tender and quote and correspond in all the matters pertaining to tender and thereafter also if the firm is awarded with the contract.

Similar letter to be given by Pvt. / public Ltd companies with the directors issuing the authorization letter

7.0 **SERVICE TAX REGISTRATION DETAILS: Not Applicable**

Copy of Service Tax registration certificate should be attached with the tender document. If such certificate is not available the proof of having applied for Service tax registration with the competent authorities should be furnished as the job in tender attracts Service tax. SERVICE TAX WILL BE PAID TO THE GOVT AUTHORITIES AS PER THE RULES APPLICABLE.

8.0 **RELATIONSHIP WITH IOC DIRECTORS**

Details of Bidder's relationship with IOC Directors should accompany the quotation as per the enclosed pro-forma.

9.0 **EARNEST MONEY DEPOSIT**

9.1 EMD IS NIL, HOWEVER , BIDDERS INCLUDING ALL CATEGORIES SUCH AS MSEs as per PPP, Startups, CPSEs & JVs NEEDS TO SUBMIT THE BID SECURITY DECLARATION as per Annexure-P11 .FAILING WHICH THE BIDS WILL BE REJECTED

Tenderers not submitting Bid Security Declaration or not uploading valid exemption certificate on or before tender submission date and time will be summarily rejected..

10.0 SECURITY DEPOSIT (SD) CUM PERFORMAMANCE GUARANTEE:

Successful tenderer have to deposit a sum equivalent to 3% of value of the contract Value (Excluding Taxes) as Security Deposit (SD) within two weeks from the date of placement of Letter Of Intent (LOI) by the Corporation. The SD can be paid in any one of the following manner.

By way of Demand draft/Pay order of Scheduled/National Bank for an amount equal to 3% of the work order value.

Or

1% of the total contract value shall be payable by DD / Pay order on placement of Work Order in advance on which no interest is allowed. The balance amount will be recovered by deduction from each running bill for work done by the Contractor at the rate of 2% of bill value, until the total amount of Security Deposit is recovered.

Or

BANK GUARANTEE (Only if the quantum of Security Deposit is in excess of Rs. 1,00,000/-):

Entire amount of security deposit (worked out on the basis of Work Order value) should be covered by BG as per the format issued by the Corporation and should be submitted prior to commencement of work. The BG will be valid for a period of 12 months beyond the date of satisfactory completion of work. This BG shall be submitted directly by the Bankers under their covering letter to the Office of the Corporation in a sealed cover.

d) Security Deposit cum Performance Guarantee would be refunded only after 12 (Twelve) months of the satisfactory completion of the contract and written request from the Bidder.

11**. Statutory Obligations:**

The Bidder shall comply with all statutory provisions relating to his trade / business / profession including his own employees. Corporation shall not be responsible for his omission or commission. Further, the Bidder undertakes to abide by the provisions of Employees' Provident Funds and Miscellaneous Provisions Act, 1952 and provisions of any other Act/ scheme in relation to employment, Service condition, Social Security, such as ESI Act/ Scheme, Employees Compensation Act etc. as an independent Employer.

12. **ACCEPTANCE OF THE TENDER BY THE CORPORATION:**

12.1 Tenders which are not in the format and in conformity with the prescribed terms and conditions, specification will be rejected.

12.2 Incomplete tenders, conditional tenders, tenders having counter conditions or tenders not confirming to the terms and conditions prescribed in the tender documents or not accompanied by their requisite documents will be rejected.

12.3 Any terms and conditions attached/ printed overleaf of the Bidders offer will not be binding on the Corporation.

12.4 The Corporation is not bound to accept the lowest tender and reserve the right to reject any or all tenders without assigning any reason whatsoever and or to carry out negotiation with the Bidders in the manner considered suitable by the Corporation.

12.5 Bidders may have to appear in the concerned office of the Corporation for Negotiation / clarification if required, at their own cost, in respect of their quotation without any commitment from the Corporation.

12.6 The successful Bidder shall return the duplicate copy of the work order and agreement duly signed in token of their acceptance within 15 days from the date of receipt of the order as applicable to the individual location.

12.7 The successful Bidder shall comply all statutory provisions relating to his trade/business/profession including his own employees and the Corporation shall not be responsible for any compliance/non-compliance of statutory provisions applicable to the successful Bidder.

12.8 The terms and conditions applicable to this tender are given in the enclosed articles of the agreement which shall be executed by the Bidder immediately on placement of work order.

12.9 The contractor should provide Safety Shoes, Hand Gloves, helmets, raincoats and uniforms to their workmen deployed.

13.0 **THE CORPORATION RESERVES THE RIGHT TO**:

a) To engage additional Repainting Bidders at any time without giving any notice whatsoever to the Bidder/s already appointed against this tender

b) To foreclose/terminate the contract with one months notice with or without assigning any reason(s) whatsoever.